



DEPARTMENT OF PUBLIC SAFETY GEORGIA STATE PATROL

PURSUIT CRITIQUE

TROOPER NAME – TFC Austin Weaver #556

Work Assignment: Troop/Division - A; Post/Unit – 3, Cartersville

INCIDENT REPORT # DPS00143102

Related Crash Reports: C000911685 ; _____ ; _____

P.I.T. Involved: No

S.C.R.T. Involved: No

Special Investigations Unit Involved: Yes

Use of Force Involved: Yes

MEETING

1. Document the date, time and location of the pursuit critique meeting with the involved trooper.

Date: 11/7/2024

Time: 13:00 hours

Location: Post 3 - Cartersville

2. List all personnel present at the meeting by name and rank. Include the trooper, an NCO in whose territory the pursuit was terminated, and the trooper's immediate supervisor.

Personnel present: Lieutenant Seth Thompson, Sergeant Stephen Langham, TFC Austin Weaver

INITIATION

1. Provide the date and time the trooper became involved in the pursuit.

Date: 08/08/2024

Time: 13:55 hours

2. Explain the circumstances that led to the trooper's involvement in the pursuit.

TFC Weaver responded to a request for assistance from Adairsville Police Officers with a vehicle pursuit on Martin Luther King Drive in Bartow County. The violator was a suspect in an aggravated assault with a firearm incident that occurred at a workplace in an adjacent county approximately 20 minutes earlier. TFC Weaver joined in the pursuit as a secondary unit on GA 140 westbound at Mitchell Road.

3. If trooper's involvement was the result of a request from another agency, provide details regarding the request.

☐ N/A If Yes, explain: Troop A Communications was contacted by Bartow County 911, who relayed a request for assistance with the pursuit from Adairsville Police Officers. The request was relayed to TFC Weaver via his DPS radio.

4. List the number and identity of other agencies and officers involved in the pursuit.

☐ N/A If needed, list: In addition to TFC Weaver, there were two Adairsville Police Officers and one Bartow County Deputy involved in the pursuit. They were identified as Chief Mike Jones, Officer S. Rickett, and Deputy John Hall.

5. If other occupants were in the patrol vehicle, identify them and state their reason for being in the vehicle.

☒ N/A If Yes, list:

6. Did the trooper take appropriate safety precautions?

☒ Yes ☐ No If no, explain:

7. Did the trooper eliminate distractions such as FM radio noise?

☒ Yes ☐ No If no, explain:

COMMUNICATION

1. If the reporting trooper initiated the pursuit by means of observing a violation and attempting a traffic stop, explain the communication that took place between the trooper and the CEO.

☒ N/A If Yes, explain:

2. Did the trooper relay pertinent information to the CEO including:

- Location and direction of travel.
- Description of the pursued vehicle.
- Number and description of occupants.
- Information regarding the use of firearms, threat of force, or other hazard.
- Options for terminating the pursuit.
- Observed danger to public safety.
- Any need for assistance.

☒ Yes ☐ No If no, explain:

3. Explain any communication that took place between the CEO and other law enforcement agencies or officers in the area.

☐ N/A

Explain: Senior Dispatcher Smith took the call for assistance from Bartow County 911, and he remained on the line to receive updates. Dispatcher Pearce relayed location updates to responding Troopers.

4. If the reporting trooper became involved in the pursuit at the request of another agency, explain any communication that took place between the trooper and another officer of the requesting agency. Give details of communication between the CEO and the requesting agency regarding the location, direction of travel, nature of the offense, any pending warrants, and details of erratic driving behavior illustrating the potential danger to the public if the suspect is not immediately apprehended.

☐ N/A

If Yes, explain: Troop A Communications was contacted by Bartow County 911 dispatch, who relayed a request for assistance with a vehicle pursuit from Adairsville Police Officers. They advised officers were in pursuit of a suspect for whom a BOLO had been issued minutes earlier regarding an aggravated assault with a firearm incident that occurred at a workplace in an adjacent county. The suspect vehicle was described as a black Chevrolet Silverado, and they advised of the suspect's possible identity. The pursuit was initially said to be traveling eastbound on Martin Luther King Drive at Cass Street.

5. Did the trooper articulate his observations?

☒ Yes

☐ No

If no, explain:

6. At the conclusion of the pursuit, did the trooper advise the CEO immediately, so other units would be familiar with the location to offer assistance, or slow in an effort to reduce the likelihood of further risk of injury to either a trooper or a member of the general public?

☒ Yes

☐ No

If no, explain:

7. Discuss any needed areas of improvement with the CEO.

☐ N/A

If Yes, explain: The radio was cleared for emergency traffic only after the pursuit terminated and TFC Weaver advised "shots fired." Given the serious nature of the violator's alleged offense and TFC Weaver's proximity to the pursuit, the radios should have been cleared shortly after receiving the call for assistance from Bartow County 911 in order to eliminate distractions and for the safety of all involved.

PURSUIT

1. Describe the route the pursuit traveled, its duration and distance.

Describe: TFC Weaver engaged in the pursuit on GA 140 westbound at Mitchell Road, just east of I-75. The pursuit terminated on GA 140, approximately 100 feet west of I-75. The pursuit traveled a total distance of approximately 0.34 miles and lasted 16 seconds.

2. Were the trooper's actions during the pursuit objectively reasonable?

☒ Yes

☐ No

If no, explain:

3. If the pursuit traveled into another post's territory, explain whether the initiating trooper yielded to a trooper whose territory the pursuit was in.

☒ N/A

If Yes, explain:

4. If the initiating trooper yielded the primary position to another unit, explain whether he proceeded to the termination point of the pursuit to provide guidance and information for the arrest of the violator.

☒ N/A

If Yes, explain:

5. Explain if there were any factors during the pursuit that indicated the possible commission of a felony.

☐ N/A

If Yes, explain: The violator a suspect in an aggravated assault with a firearm incident that occurred at a workplace in an adjacent county approximately 20 minutes earlier. His actions during the pursuit support a charge of Felony Fleeing and Attempting to Elude.

6. Did the trooper articulate his observations?

☒ Yes

☐ No

If no, explain:

7. Did the trooper practice commentator driving?

☒ Yes

☐ No

If no, explain:

8. Did the trooper remain calm and professional during the pursuit?

☒ Yes

☐ No

If no, explain:

DRIVING SKILLS

1. Did the trooper use due caution when operating his vehicle during the pursuit?

☒ Yes

☐ No

If no, explain:

2. Were the driving skills/techniques initiated appropriately?

☒ Yes

☐ No

If no, explain:

3. Were the driving skills/techniques appropriate during the pursuit?

☒ Yes

☐ No

If no, explain:

4. Were the driving skills/techniques appropriate during termination?

☒ Yes

☐ No

If no, explain:

5. Did the trooper appear to experience adrenalin rush, tunnel vision, or any other internal/external factors?

☐ No

If Yes, explain: TFC Weaver stated he experienced an adrenalin rush.

6. Did the trooper get into the danger zone due to adrenalin rush, tunnel vision, or other factors?

☒ No

If Yes, explain:

EQUIPMENT

1. Were the blue lights and siren in operation during the entire pursuit?

☒ Yes

☐ No

If no, explain:

2. If the patrol car was equipped with wig-wag headlights, were they in operation during the entire pursuit?

☒ Yes ☐ No If no, explain:

3. Was the in-car camera working properly?

☒ Yes ☐ No If no, explain:

4. Was the trooper's microphone working properly?

☒ Yes ☐ No If no, explain:

TERMINATION

1. Did the trooper continue the pursuit to a conclusion? If not, explain the reasons.

☒ Yes ☐ No If no, explain:

2. Was there a good probability of the suspect's arrest at a later time because of positive identification?

☐ N/A If Yes, explain: The suspect was positively identified, however, the serious nature of the suspect's alleged offense created a need for immediate apprehension.

3. Articulate attempts taken by the trooper to utilize pursuit termination techniques, such as tire deflating devices, roadblocks, P.I.T. maneuver, and trooper discretion.

☒ N/A Explain:

4. Expound on safety precautions utilized by the trooper during and after the pursuit.

☐ N/A Explain: TFC Weaver responded to, and engaged in, the pursuit with all emergency equipment activated. He exercised commentative driving and he communicated with Troop A Communications to mitigate the effects of an adrenalin rush. At the termination point, as the violator was firing upon officers, TFC Weaver engaged the suspect with his service weapon from a position of cover.

5. Articulate the existing traffic conditions during the pursuit, realizing the conditions may differ at various times during the pursuit.

Explain: The pursuit occurred during daylight hours with cloudy skies and the roadway surface was dry. The traffic conditions throughout the pursuit would be described as moderate.

6. Address whether there are any conditions that would create additional danger to the public by continuing the pursuit.

☒ N/A If Yes, explain:

7. Address whether there were any conditions that necessitated the pursuit being brought to an immediate conclusion and describe the conditions.

☒ N/A If Yes, explain:

8. Establish whether the violator was an immediate threat to the trooper, the public or themselves.

☐ N/A If Yes, explain: The violator was a suspect in workplace shooting incident that occurred in an adjacent county approximately 20 minutes prior to the pursuit. During the pursuit, the violator operated his vehicle at high speeds while running red lights within the city limits of Adairsville, where moderate traffic was present. The pursuit terminated when the violator crashed into the rear of a bystander vehicle. Once stopped, the violator immediately opened fire on pursuing officers while firing in the direction of a busy state highway and nearby businesses. The violator demonstrated total disregard for the lives of others or himself.

9. Outline whether the use of deadly force was justified and if so, why it was justified.

☐ N/A If Yes, explain: At the conclusion of the pursuit, the suspect fired multiple rounds at law enforcement, and TFC Weaver was involved in a use of deadly force incident. A separate investigation was conducted by the Office of Professional Standards in which TFC Weaver was exonerated.

10. Establish whether the method of termination was reasonable based on the facts gathered during the pursuit, and state those facts.

☒ N/A If Yes, explain:

11. If there were any injuries, state who received them, the type and severity.

☐ N/A If Yes, explain: The violator sustained serious injuries as a result of gunshot wounds received during the use of force incident that transpired at the termination point. During the crash that terminated the pursuit, the suspect struck a bystander vehicle in the rear. The driver of the bystander vehicle received minor injuries to his back.

12. If there was a fatality, provide basic facts surrounding the circumstances.

☒ N/A If Yes, explain:

13. Address any damage to vehicles.

☐ N/A If Yes, explain: The crash that terminated the pursuit involved the suspect's vehicle and a bystander vehicle. The suspect's vehicle struck the rear of the bystander vehicle, resulting in disabling damage to each.

TROOPER'S ABILITIES AND EXPERIENCE

1. Prior pursuits (compare if appropriate).

☐ N/A If Yes, explain: TFC Weaver has been involved in four prior pursuits over the course of his career as a Georgia State Trooper.

2. Past use of techniques and high speed driving.

☒ N/A If Yes, explain:

ISSUES ADDRESSED

1. Positives.

☐ N/A If Yes, explain: TFC Weaver demonstrated great fortitude and professionalism throughout the incident. He exercised due regard while responding to and during the pursuit, and he exhibited good high-speed driving skills. TFC Weaver further exhibited good quick decision-making ability while attempting to take the violator into custody.

2. Areas for improvement.

☒ N/A If Yes, explain:

3. Other considerations.

☐ N/A If Yes, explain: TFC Weaver was involved in use of deadly force incident at the conclusion of the pursuit, and a Use of Force report was completed. A separate investigation was conducted by the Office of Professional Standards (See Case #IA-0053-2023) in which TFC Weaver was exonerated.

RESPONSE FROM TROOPER OR SUPERVISOR

1. Allow trooper and supervisor an opportunity to respond or add comments.

☐ N/A If Yes, explain: Sgt. Langham praised TFC Weaver for his overall performance and commitment to duty.

CORRECTIVE ACTION TAKEN

1. Describe any corrective action taken as a result of the trooper's actions during the pursuit.

☒ N/A If Yes, explain:

Lieutenant A. Seth Thompson #35 *Lt. A.S. Thompson #35*
Reviewing Officer

11/7/2024
Date